

2:00 PM

LINE 4

24-CLJ-07961

AMERICAN EXPRESS NATIONAL BANK VS. LISA MILLER

AMERICAN EXPRESS NATIONAL BANK

LISA MILLER

KATIE ZWARG

PRO SE

PETITION TO CONFIRM CONTRACTUAL ARBITRATION AWARD

CONTINUED FROM 6/2/2026

TENTATIVE RULING:

The court DENIES without prejudice plaintiff's unopposed petition to confirm arbitration award.

As stated in the court's June 1, 2026 tentative ruling, which was adopted at the June 2, 2026 hearing and put in the minutes: "Plaintiff has not filed any proof of service establishing that Defendant was served with plaintiff's Petition. Plaintiff shall serve defendant by June 9, 2026 and file a proof of service no later than July 14, 2026."

There still is no proof of service in the court file. Thus, the court must deny the motion.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 5

25-CIV-00194

DAVID BERNARD PARVIN VS. SANDEEP KHANNA, ET AL.

DAVID BERNARD PARVIN
SANDEEP KHANNA

NELSON W GOODELL
PRO SE

DEMURRER OF DEFENDANT ASAP COLLECTIONS SERVICES TO THE THIRD AMENDED COMPLAINT

TENTATIVE RULING:

Defendant ASAP Collection Services' Demurrer to Third Amended Complaint is SUSTAINED IN PART with LEAVE TO AMEND.

Plaintiff David Bernard Parvin's Request for Judicial Notice is GRANTED as to the existence of the documents as records of the county recorder and of the Court but not the truth of any matter therein. (See *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194; *Middlebrook-Anderson Co. v. Southwest Sav. & Loan Assn.* (1971) 18 Cal.App.3d 1023, 1038.)

A. Order Sealing Records

Portions of the Third Amended Complaint ("TAC") were sealed by court order on January 29, 2026. (Jan. 29, 2026 Order.) In support of its demurrer, Defendant ASAP Collection Services ("ASAP") submitted an unredacted copy of the TAC as exhibit A to the declaration of Peter C. Catalanotti in support of the demurrer.

In sealing portions of the TAC, the Court found that, according to the declaration of Parvin's counsel submitted in support of the motion to seal, paragraphs 23–24, 82–83, 85, and 93–96 of the TAC contain Parvin's private medical information. (See Aug. 7, 2025 Declaration of Nelson Goodell, ¶ 3.)

Medical records are to be considered "presumptively private," such that a party to moving to seal is "not required to state the obvious in a declaration, that [he or] she would be personally embarrassed to have [his or] her medical records copied into court records. The public, through its courts and legislatures, has recognized that medical records are constitutionally private and statutorily confidential." (*Oiye v. Fox* (2012) 211 Cal.App.4th 1036, 1070.) While the allegations are not medical records per se, the Court determined that the information set forth in the allegations is sufficiently detailed as to be analogous.

The evidence showed that there existed and continues to exist an overriding interest that overcomes the right of public access to the record, the interest supports sealing the record, and there is a substantial probability the interest will be prejudiced if the record is not sealed. The Court further ordered only those paragraphs containing the private medical condition to be
